

Amendment No. 2 to HB0894

Lafferty
Signature of Sponsor

AMEND Senate Bill No. 720*

House Bill No. 894

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 69-10-107, is amended by deleting subsections (a)-(c) and substituting:

(a)

(1) Effective July 1, 2025, the board is vacated and reconstituted in accordance with this subsection (a).

(2) In order to advise and assist the commissioner in the preparation of rules, there is created and established an advisory board to be known as the board of ground water management, consisting of five (5) members. The members include:

(A) The commissioner of the department of environment and conservation or the commissioner's designee;

(B) The director of water resources or the director's designee; and

(C) Three (3) persons who are licensed as both water well drillers and pump installers in this state, with one (1) such person being a resident of the western grand division of the state, one (1) being a resident of the middle grand division of the state, and one (1) being a resident of the eastern grand division of the state.

(3) The persons appointed under subdivisions (a)(2)(A) and (B) are ex officio non-voting members of the board.

(4)

(A) Of the three (3) persons appointed under subdivision (a)(2)(C), the member appointed from the:

(i) Western grand division is appointed by the speaker of the house of representatives and serves an initial term of one (1) year;

(ii) Middle grand division is appointed by the governor and serves an initial term of two (2) years; and

(iii) Eastern grand division is appointed by the speaker of the senate and serves an initial term of three (3) years.

(B) Except as provided in subdivision (a)(4)(A), board members serve for three-year terms that begin on July 1 and expire on June 30 of the appropriate years.

(C) Upon the expiration of the terms of board members appointed under subdivision (a)(2)(C), successors shall be appointed in the same manner as the original appointments.

(5) The persons appointed under subdivision (a)(2)(C) must be actively engaged in well drilling in this state for at least five (5) consecutive years preceding their appointment.

(6) Excluding the service of initial terms under subdivision (a)(4)(A), persons who are appointed to the board shall serve no more than two (2) consecutive terms.

(7) Members serving on the board as of June 30, 2025, may be reappointed as members in accordance with this subsection (a).

(b)

(1) In addition to the appointment of board members under subdivision (a)(2), there are three (3) alternate members to serve as replacements for such board members should a vacancy occur on the board for any reason. An

alternate member may participate in a board meeting as a replacement for the appointed member from the same grand division in which the alternate member resides if the appointed member is unable to attend the meeting. The appointed member shall give reasonable notice of the meeting time and location to the alternate member.

(2) The alternate members must meet all the qualifications as board members appointed under subdivision (a)(2), but assume no authority under this section unless and until they are designated to replace an appointed member.

(3) Persons appointed as alternate members shall serve terms that run commensurate with the terms of the members to whom they serve as alternates.

(4) Any vacancy of an alternate member, which may occur from any cause, must be filled by appointment for the unexpired term in the same manner as the original appointment, and the dates of tenure of office as provided in subsection (b) must be maintained.

(c) The commissioner shall serve as chair, and the director of water resources shall serve as secretary of the board, which shall meet at least once quarterly. At each quarterly meeting, the board shall determine and set the date, time, and place of the next meeting. A quorum consists of two (2) members of the board. The board members must be reimbursed for travel expenses in accordance with the comprehensive travel regulations as promulgated by the department of finance and administration and approved by the attorney general and reporter.

SECTION 2. Tennessee Code Annotated, Section 69-10-107, is amended by deleting subsection (e) and substituting:

(e)

(1) Prior to the issuance of a well driller's license or an installer's license, the board of ground water management shall:

(A) Review the applications for such licenses;

(B) Administer the approved licensure test, including an interview of the applicant without other applicants present; and

(C) Make a recommendation to the commissioner either for or against the issuance of a license to the applicant.

(2) The board shall promulgate rules, in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5, to specify the criteria to be used by the board in making such recommendations.

SECTION 3. Tennessee Code Annotated, Section 69-10-107, is amended by adding the following as new subsections:

(f) The board shall review all complaints and violations of adopted rules and make recommendations to the commissioner for remedies to the complaints and violations. The department shall convey a complete list of complaints and violations to board members and alternate members at least quarterly. Recommended remedies must be made at the next appropriate board meeting.

(g) The board shall review all continuing education classes and programs and make recommendations to the commissioner for the issuance of the same, and shall approve continuing education points.

SECTION 4. Tennessee Code Annotated, Section 4-29-246(a), is amended by deleting subdivision (6).

SECTION 5. Tennessee Code Annotated, Section 4-29-248(a), is amended by inserting the following as a new subdivision:

() Board of ground water management, created by § 69-10-107;

SECTION 6. This act takes effect July 1, 2025, the public welfare requiring it.